

“I lost my job today,” she replied matter-of-factly. “Well, I was put on leave for a month. Unpaid.”

“Why? What happened?”

“Melanie Moore said I was taking too much time off, and they needed someone who is more consistent.”

“They can’t do that. It’s illegal, isn’t it?” Ben’s reaction was from fear, as much as anger.

“Well, they did it,” Naomi replied. “They’re willing to try to bring me back when I can work again. But Melanie is right: if I keep up this pace, it may hurt the baby.”

“But what are we going to do?” Ben said in despair. “We just bought your car, and we can barely make ends meet even when you work.”

“Melanie suggested that we file for bankruptcy protection,” Naomi replied. “She said her husband is an attorney who handles bankruptcies for couples like us all the time. But I’m not sure I want that kind of thing on my record.”

“It’s my record, too,” Ben asserted. “We’ve got a lot of credit card debt along with the house and cars. We can’t keep going like we are. Something’s got to give.”

“My mom and dad never would have had to do anything like this,” Naomi answered, handing Ben the business card her supervisor had given her. “It’s embarrassing.”

“In a situation like ours, you do what you have to do, Naomi. It boils down to one thing: survival.”

Under provisions of the 2005 bankruptcy law, Ben and Naomi were required to meet for ninety minutes with a credit counselor in their judicial district. They also had to attend classes on managing money—at their expense. In addition, the law required them to take a two-part means test, which evaluated their ability to repay their unsecured debt and compared their income to their state’s median income.